

26TRCV01125 26TRCV01125

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Case Number: 26TRCV01125 Hearing Date: September 22, 2026 Dept: E

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. E

JASON A.

VALLEJOS, an individual

Plaintiff,

Case No.:

26TRCV01125

vs.

[Tentative]

Granted

AMERICAN

HONDA MOTOR CO. INC.; a California Corporation, and DOES 1-20, Inclusive,

Defendants.

Hearing

Date: September
22, 2026

Moving Parties: Defendant American Honda Motor Company

Responding

Party: Plaintiff Jason A. Vallejos

HEARING: Motion to Compel
Arbitration

The

Court considered the moving, opposition, and reply papers.

RULING

The Court grants the Motion to Compel
Arbitration.

BACKGROUND

On March 27, 2026, Plaintiff Jason
A. Vallejos filed the Complaint against Defendant American Honda Motor Company
alleging causes of action for violations of the Song-Beverly Act.

On July 6, 2026, Defendant filed the
Motion to Compel Arbitration.

On September 9, 2026, Plaintiff
filed the Opposition.

On September 14, 2026, Defendant
filed the Reply.

LEGAL STANDARD

The Federal Arbitration Act (the "FAA")
applies in both federal and state courts to contracts evidencing a transaction
involving interstate commerce. (9 U.S.C. §§ 1-2; *Southland Corp. v. Keating*
(1984) 465 U.S. 1, 12.) The FAA preempts conflicting state law. (*Preston v.*

Ferrer (2008) 552 U.S. 346, 353.) The party that contends the FAA applies bears the burden to demonstrate that the arbitration agreement is in a "contract evidencing a transaction involving commerce." (Woolfs v. Super. Ct. (2005) 127 Cal.App.4th 197, 211.)

Under Code of Civil Procedure section 1281.2, "[o]n petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for the revocation of the agreement."

DISCUSSION

The instant case arises out of the lease of a 2025 Acura MDX, VIN 5J8YD9H48SL000771. Defendant moves to compel arbitration based on the agreement in the warranty booklet.

Agreement to Arbitrate:

"Please note that this new vehicle limited warranty contains an arbitration provision that may affect your legal rights, and you agree that, pursuant to the Arbitration Provision contained in this warranty (beginning on page 6) of this booklet, that either you or American Honda Motor Co., Inc. may elect to resolve any dispute by neutral, binding arbitration and not by a court action. See the Arbitration Provision contained (beginning on page 6) of this new vehicle limited warranty for additional information concerning the agreement to arbitrate ... You and we agree that any dispute arising out of or relating to any aspect of the relationship between you and Honda will not be decided by a judge or jury but instead by a single arbitration administered by the American Arbitration Association (AAA) under its Consumer Arbitration Rules in effect on the date of delivery of your vehicle to you. This Agreement to Arbitrate includes all claims, whether based in contract, tort, statute, fraud, misrepresentation or any other legal theory; claims arising out of your warranty; claims arising before or after this Agreement, such as claims related to statements about our products; claims about the performance, design of our products, or manufacturing of our products; and claims that are currently the

subject of purported class action litigation in which you are not a member of a certified class ... You may opt out of arbitration within 30 days after the date of delivery of your vehicle to you by sending a letter to: Honda's Office of the General Counsel, 1919 Torrance Blvd., Mail Stop CHI-5, Torrance, CA 90501, stating your name, Vehicle Identification Number, and intent to opt out of the arbitration provision. If you do not opt out, then this agreement to arbitrate is binding."

(Hurvitz Decl. Exhibit B.)

Existence of Valid Arbitration Agreement and Claims Covered by Arbitration Clause

"[T]he petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence..." (Giuliano v. Inland Empire Personnel, Inc. (2007) 149 Cal.App.4th 1276, 1284.) "In determining whether an arbitration agreement applies to a specific dispute, the court may examine only the agreement itself and the complaint filed by the party refusing arbitration [citation]. The court should attempt to give effect to the parties' intentions, in light of the usual and ordinary meaning of the contractual language and the circumstances under which the agreement was made." (Weeks v. Crow (1980) 113 Cal.App.3d 350, 353.) "To determine whether a contractual arbitration clause requires arbitration of a particular controversy, the controversy is first identified, and the issue is whether that controversy is within the scope of the contractual arbitration clause." (Titolo v. Cano (2007) 157 Cal.App.4th 310, 316.) "Doubts as to whether an arbitration clause applies to a particular dispute are to be resolved in favor of sending the parties to arbitration. The court should order them to arbitrate unless it is clear that the arbitration clause cannot be interpreted to cover the dispute." (California Correctional Peace Officers Ass'n v. State (2006) 142 Cal.App.4th 198, 205.)

"[A] party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. [Citation.] In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination." (Giuliano, supra, 149 Cal.App.4th at p. 1284.)

Plaintiff argues

that Defendant has not established that Plaintiff agreed to the arbitration provision in the Warranty Booklet. Plaintiff contends that Paragraph 7 of the Complaint acknowledges manufacturer warranty coverage but does not state that the booklet was delivered to Plaintiff, or that Plaintiff reviewed or agreed to its arbitration provision. Plaintiff maintains that receiving warranty coverage differs from receiving a particular warranty publication, and that exercising statutory rights under a manufacturer warranty is not assent to every collateral term in the document describing it. Plaintiff argues that warranty obligations and the formation of an arbitration agreement are separate issues that Defendant must establish.

Plaintiff argues

that Defendant's evidence shows only the existence of a 2025 Acura warranty publication, not its delivery. Plaintiff notes that the Hurvitz declaration states only that Exhibit B is a true and correct copy available through the MyGarage website and says nothing about whether the booklet was provided to Plaintiff. Plaintiff argues that Mr. Hurvitz did not participate in the August 2024 lease transaction, identifies no delivery practice, and attaches no delivery record, so present website availability does not prove historical delivery, particularly given the 30-day opt-out period measured from delivery.

Plaintiff contends

that Kostandian is materially distinguishable because Defendant there produced a signed final inspection at delivery sheet confirming receipt of warranty information, which the Court of Appeal relied on in finding the burden satisfied. (*Kostandian v. American Honda Motor Company, Inc.* (2026) 120 Cal.App.5th 872, 882-884.) Plaintiff contends that no analogous signed delivery document exists here, and that the Lease confirms only receipt of a copy of the Lease.

Plaintiff further

argues that his general pleading of written warranties is not a judicial admission of receipt of Exhibit B or its arbitration terms, because Paragraph 7 identifies no booklet, arbitration agreement, opt-out procedure, time or method of delivery, or acknowledgment of receipt. Plaintiff maintains that a judicial admission cannot be expanded beyond its actual language.

Plaintiff contends

that receipt of warranty benefits does not by itself establish assent to arbitration, because arbitration is a matter of consent. (Volt Information Sciences, Inc. v. Board of Trustees of Leland Stanford Junior University (1989) 489 U.S. 468, 478.) Plaintiff relies on authority that an offeree cannot assent without knowing of the offer. (Knutson v. Sirius XM Radio Inc. (9th Cir. 2014) 771 F.3d 559, 565.) Plaintiff further relies on authority that warranties impose obligations on the warrantor and that receiving warranty materials does not signify assent to obligations imposed on the purchaser. (Norcia v. Samsung Telecommunications America, LLC (9th Cir. 2017) 845 F.3d 1279, 1284-1286

Plaintiff also

argues that his failure to use the opt-out procedure does not establish assent absent proof of notice, because an opt-out matters only after the terms are communicated sufficiently to put the offeree on notice that inaction constitutes acceptance. Plaintiff contends that Civil Code section 1584 requires notice that a proposal exists before performance or silence can constitute acceptance, and that Defendant offers no evidence Plaintiff received the booklet within the 30-day period or was told that failing to send a letter would waive his right to litigate.

In reply, Defendant argues that it satisfied its prima facie burden and that Plaintiff produced no evidence showing that he did not assent to the agreement.

Defendant argues

that the burden then shifted to Plaintiff at step two to produce evidence disputing the agreement, and Plaintiff produced nothing, submitting no declaration and not even contending as attorney argument, that he did not receive the booklet or was unaware of its terms. Defendant contends that attorney argument is not evidence, that delivery, notice, and mutual assent are not elements of its prima facie burden, and that the analysis never reached step three, so the Motion must be granted.

Defendant also argues

that Kostandian is controlling and that the absence of a signed delivery acknowledgment does not distinguish it, because the signed delivery sheet there played no role in the step-one holding and mattered only at step two, where it helped defeat a late-receipt theory the plaintiff actually advanced. (Kostandian, supra, 120 Cal.App.5th 872, 883-884.) Defendant contends this is a

clearer case because Plaintiff advances no late-receipt theory and offers no evidence on receipt at all.

Defendant further

argues that Plaintiff's own Complaint defeats his Opposition, because it repeatedly alleges receipt of Defendant's written warranties, identifies the specific coverage, and predicates both causes of action and all relief on breach of those warranties under the Song-Beverly Act. Defendant contends that the Warranty Booklet sets forth the express warranty and contains the Agreement to Arbitrate, so Plaintiff cannot invoke the warranty while disavowing the arbitration provision, and that these pleadings, combined with the absence of contrary evidence, end the analysis at step two. (Kostandian, *supra*, 120 Cal.App.5th 872, 884.)

"The burden of

persuasion is always on the moving party to prove the existence of an arbitration agreement with the opposing party by a preponderance of the evidence: Because the existence of the agreement is a statutory prerequisite to granting the [motion or] petition, the [party seeking arbitration] bears the burden of proving its existence by a preponderance of the evidence." (Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 165.) However, the burden is a three-step framework. "First, the moving party bears the burden of producing prima facie evidence of a written agreement to arbitrate the controversy. The moving party can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party's] signature. Alternatively, the moving party can meet its burden by setting forth the agreement's provisions in the motion." (Ibid.) "For this step, it is not necessary to follow the normal procedures of document authentication." (Ibid.)

"If the moving

party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement." (Ibid.) "The opposing party can do this in several ways. For example, the opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement." (Ibid.)

Last, "if the

opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties." (Ibid.)

In *Kostandian v. American Honda Motor Co., Inc.* (2026)

120 Cal.App.5th 872, the Court found that the defendant met its initial burden by presenting a copy of the warranty booklet, reciting its terms verbatim, and providing the necessary allegations, which shifted the burden to the plaintiff, who then produced no evidence. (Id. at 882.) While the Court mentioned the signed delivery sheet, it was not the basis for its finding that the defendant had met its initial burden. (Ibid.)

Here, Defendant provided the warranty booklet included with the car, which included the arbitration agreement. Defendant can meet its initial burden by merely reciting the terms of the arbitration agreement. (*Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 218-219.) Thus, while *Kostandian* included a signed delivery sheet, Defendant need not produce one to meet its initial burden. (*Kostandian*, supra, 120 Cal.App.5th 872, 882.) Thus, the Court finds that Defendant has met its initial burden. In response, Plaintiff has provided no evidence showing that he did not receive the arbitration agreement, as Plaintiff has provided no declaration or documents. Thus, the lack of a signed delivery receipt does not become an issue. Furthermore, Plaintiff attempts to rely on *Knutson v. Sirius XM Radio Inc.* (9th Cir. 2014) 771 F.3d 559. In *Knutson*, the Court denied the motion to compel arbitration because the warranty booklet wasn't delivered until a month after the car's purchase, and the plaintiff had no reason to know he had any contractual relationship with SiriusXM Radio after purchasing a car from Toyota. (*Knutson*, supra, 771 F.3d 559, 562, 566; *Kostandian*, supra, 120 Cal.App.5th 872, 884.) Here, however, Plaintiff has not shown that the warranty booklet was not delivered with the car, and Plaintiff had reason to know he was entering into a contract with Honda when he bought a Honda car.

Plaintiff's Ford Warranty Cases argument is also immaterial, as Ford Warranty Cases concerned a manufacturer trying to enforce the dealer's sales-contract arbitration clause as a non-signatory through equitable estoppel, whereas here Defendant enforces its own direct warranty-booklet agreement. (*Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, 1133-1138.)

Last, Plaintiff argues that the agreement is unconscionably. However, Plaintiff has made no argument regarding substantive unconscionability, and both procedural and substantive unconscionability must be present for a Court to find an agreement unconscionable. (Torrecillas v. Fitness International, LLC (2020) 52 Cal.App.5th 485, 492.)

Therefore, the Court grants the Motion to Compel Arbitration.